

// specific review priorities + areas of concern

Cover Note to Legal Reviewer

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From: Kade Dunstone, founder, Body Recode **Re:** Founding Ten legal package v0.1 **Documents:** Founding Partner Agreement + IP Licence Deed **Prepared:** July 2026

01 What Body Recode is doing

Body Recode is licensing a proprietary interpretation engine + platform ("the Platform") to a capped group of ten allied coaches ("Founding Ten") under a subscription + per-active-client model. Each partner runs their own coaching business on the Platform, branded as theirs, powered by Body Recode's engine and doctrine.

The commercial relationship has three moving parts:

1. **The Platform** (Layer 2): a coaching web application, tenant-scoped per partner
2. **The Engine** (Layer 1): interpretation algorithms + doctrine rules that read a client's state and produce coaching direction
3. **The Brand**: partner uses their own brand primarily, with an optional "Powered by Body Recode" acknowledgement

The commercial arrangement is Partner pays Body Recode: - One-time setup fee at commencement - Monthly platform subscription (locked for life at Founding Ten rate) - Ongoing per-active-client fee, billed monthly in arrears

The Partner's clients pay the Partner directly (Stripe Connect). Partner keeps 100% of client revenue.

02 What we need from you

High-priority review areas

1. **IP scope** (Licence Deed sections 3-4, 6-8). We are licensing Layer 2 but keeping Layer 1 (the engine + doctrine) as ours. The line between what a partner can use, modify, and extend versus what stays proprietary needs to be watertight. Please tune the "Excluded IP" schedule so the engine cannot be reverse-engineered, sublicensed, or wrapped by the partner.
2. **Termination + wind-down** (Agreement sections 14, 15). What happens when a partner leaves or is terminated for cause? Client data, client relationships, tenant config, ongoing subscriptions their

clients have with the partner — all need clear post-termination pathways. Draft handles data return + client handover; please pressure test.

3. **Doctrine compliance + hard safety floors** (Agreement section 7, Schedule 3). The engine's safety limits (RRS clamps, Fat Map limits, injury contraindications, eligibility floors) MUST bind the partner. This is our public liability shield. Please make sure the drafting is enforceable.
4. **Data + privacy** (Agreement section 9). Partner is the primary data controller for their clients. Body Recode is a data processor. Please align with Australian Privacy Principles + Privacy Act 1988. Client data does not cross tenants and cannot be exported for other purposes.
5. **Australian Consumer Law implications** (Agreement sections 12, 13). Founding partners are businesses buying a business service, not consumers, so much of the ACL should not apply. But please review the warranties + disclaimers + liability caps for enforceability.
6. **Founding Ten discount lock-in** (Agreement section 6, Schedule 1). Setup discount + subscription rate is "locked for life." We want this to bind Body Recode even under change of control. Please make sure the drafting achieves that.

Standard review areas

7. **GST + tax treatment.** Body Recode is GST-registered. Fees quoted are ex-GST. Please confirm GST + withholding treatment for the three fee lines.
8. **Force majeure, assignment, entire agreement, notices.** Standard boilerplate but review as usual.
9. **Governing law + jurisdiction.** Queensland Courts. Confirm any conflicts.
10. **Execution formalities.** Should the IP Licence be executed as a deed (recommended, gives 12-year limitation period) or by simple contract?

Low-priority

11. Wordsmithing throughout — read for clarity and internal consistency.

03 What is deliberately out of scope for v0.1

- **The Powered Partner tier** (Tiers 1 + 2 in `OFFER_ARCHITECTURE.md`) — referral + funnel-attribution partners get a lighter one-page terms document. Not drafted yet.
- **Method-injection ("Mode B")** — reserved for post-Founding-Ten. All Founding Ten partners run Doctrine Mode A (BR doctrine branded as theirs). No IP contribution from partner in Mode A, so no reverse licence needed.
- **Reseller / white-label of the platform to third parties** — expressly prohibited in the Licence.

04 Timelines

- Legal review by legal reviewer: ideal turnaround 5 business days
- Kade to review redline: 2 business days
- Final v1.0: within 2 weeks of legal receiving these drafts
- First partner ready to sign: no committed date but we have a pilot lined up who could go as early as August 2026

05 Contact

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